

hereditibus et successoribus nostris, per presentes concedimus prefatis cancellario, magistris, et scholaribus, et successoribus suis, in perpetuum, quod bene licebit prefatis cancellario, magistris, et scholaribus, et successoribus suis, per seipsos, aut per eorum deputatos, officarios, servientes, et ministros, seu per eorum aliquem sive aliquos, de tempore in tempus ad omnia tempora, tam in die quam in nocte, ad eorum beneplacitum, ex nunc in perpetuum, ad faciendum scrutinium, scrutationem, et inquisitionem, tam per diem quam per noctem, quotiescunq. et quodocunq. eis videbitur expedire in prædictâ villâ Cantebriegiæ, et in suburbis ejusdem, et in Barnewell et Sturbridge prædictis, de et pro omnibus et publicis mulieribus, pronubis, vagabondis, et aliis personis de malo suspectis, ad dictam villam et suburbia, ferias, mercatus, nundinas, et loca prædicta, seu ad eorum aliquem venientes seu confluentes; ac omnes et singulas illas personas quas iidem cancellarius, magistri, et scholares, aut eorum successores, aut eorum deputati, officarii, servientes, et ministri, seu [535] eorum aliqui seu aliquis, super aliquod hujusmodi scrutinium, scrutationem, sive inquisitionem, reas seu suspectas de malo invenerint, puniendi per imprisonment corporum suorum, banntionem, et aliter, prout cancellario dicta universitatis Cantebriegiæ, aut ejus vicemgerenti pro tempore existenti, videbitur punire, absq. impetitione, molestatione, perturbatione, seu gravamine nostri hereditum vel successorum nostrorum, aut aliquorum officiariorum seu ministrorum, vel alicujus officarii seu ministri nostris hereditum vel successorum nostrorum seu eorum alicujus, statuto sive acta parlamenti jam edito seu in posterum edendo in aliquo non obstante," &c. &c.

The defendant and the Rev. Mr. Blore were examined: and the latter justified his suspicion of the intention of the parties by the circumstances under which they were found and apprehended, and the antecedents of some of the young women.

It was also proved that the Spinning House was the usual place of imprisonment of the university, and was subject to the regulation of the secretary of state, and visitation of the government inspector.

The contention on the part of the plaintiff at the trial was, that the charter did not justify the arrest and incarceration of the plaintiff, there being nothing to shew that she was a person of loose or immoral character, or that she had been guilty of any offence punishable by law; that the proceeding before the vice-chancellor, no witnesses being called to prove the charge alleged against the plaintiff, and no opportunity being offered to her to defend herself, was oppressive and illegal; and that her commitment without warrant was a gross and unconstitutional violation of the law. It was further contended that the Spinning House was not a fit and proper gaol for the vice-chancellor to commit to; and that the depriving the plaintiff of her [536] clothes, and substituting the prison garb, was an unreasonable and improper violation of the liberty of the subject. It was, however, admitted by the plaintiff's counsel that the vice-chancellor had throughout the proceedings complained of acted *bonâ fide* and according to the best of his judgment and discretion.

On the part of the defendant, it was submitted, that, assuming the evidence given on the part of the plaintiff to be true, it sustained all the material allegations in the defendant's pleas; and that the vice-chancellor, having acted throughout in the capacity of judge of a court of record, and having as such adjudicated to the best of his judgment upon a matter within his jurisdiction brought before him for judicial determination, no action could be maintained against him in respect of anything so done by him, however mistaken he might have been either in respect of fact or of law.

The learned judge, reserving leave to the defendant to move to enter a verdict for him upon this ground, left the case to the jury, elaborately reviewing the facts and the arguments urged on the one side and on the other, and laying down the law substantially as follows:—

Before I proceed to consider the questions of law which are raised by the record,

what the said culprit had to allege in her defence, I did adjudge to be true: These are, therefore, to require and command you to receive into your custody the said culprit, and her safely to keep in your said Spinning House for fourteen days. Given under my hand and seal the 30th day of January, 1860.

“LATIMER NEVILLE, Master of Magdalene College, and Vice-Chancellor of the University of Cambridge.”